

Unit: 3

A. Major trends in Post-Independence Press in India:

Introduction:

After India gained independence in **1947**, the Indian press entered a new era. The focus of newspapers shifted from fighting against British rule to **nation-building, social development, and democratic participation**. Over time, with changes in politics, economy, and technology, the Indian press also went through several **major trends and transformations**.

1. Shift from Missionary to Professional Journalism:

- Before independence, newspapers mainly worked for **freedom struggle and social reform**.
 - After 1947, journalism became **more professional** with focus on **news reporting, analysis, and accuracy**.
 - **Press became a business**, and earning profit became important.
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2. Growth of Language Newspapers:

- English newspapers remained powerful, but **regional and Indian language newspapers** saw huge growth.
 - Newspapers in **Hindi, Bengali, Tamil, Telugu, Urdu, Malayalam, and Marathi** became more popular.
 - Example: *Dainik Jagran*, *Anandabazar Patrika*, *Malayala Manorama*, *Eenadu*, etc.
 - These papers connected better with **local readers** and covered **regional issues**.
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3. Rise of Newspaper Ownership by Business Groups:

- After independence, many **large industrial houses** started owning newspapers.
 - Press became part of **corporate media**, which increased professionalism but also brought **commercial and political influence**.
 - Example: *Times of India* group owned by Bennett, Coleman & Co.
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4. Emergency and Press Censorship (1975–1977):

- During the Emergency declared by **Prime Minister Indira Gandhi** in 1975, press freedom was restricted.
 - Newspapers had to take **government approval** before publishing news.
 - Many editors and journalists were **jailed**, and censorship was forced.
 - This period raised questions about **press freedom in a democracy**.
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5. Technological Advancement:

- Printing technology improved with **offset printing, computers, and later digital tools**.
 - Newsrooms became **faster** and more **efficient**.
 - Use of **colour printing, graphics, and photography** increased.
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6. Growth of Investigative Journalism:

- Journalists began to investigate issues like **corruption, crime, scams, and human rights violations**.
 - Example: Exposés on **Bofors scam, Hawala case, and 2G spectrum scam**.
 - Investigative journalism helped the public know the **truth behind political and corporate power**.
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7. Entry of Women and New Voices:

- After independence, more **women journalists** entered the field.
 - Voices of **marginalised groups, Dalits, tribals, and minorities** started getting space in media.
 - It helped Indian press become **more diverse and inclusive**.
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8. Rise of Sensationalism and Paid News:

- In recent years, some newspapers started giving importance to **sensational and celebrity news** over serious issues.
 - Problem of **paid news** (money for favourable coverage) started affecting the **credibility** of journalism.
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9. Digital Challenge:

- The growth of **TV channels** and later **online news platforms** reduced the importance of print newspapers.
 - Many newspapers had to **adapt by launching e-papers, websites, and mobile apps**.
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Conclusion:

The post-independence Indian press has moved from a **freedom movement tool to a powerful democratic institution**. While it has achieved **growth, diversity, and professionalism**, it also faces challenges like **corporate pressure, sensationalism, and declining credibility**. Still, the Indian press remains one of the **most vibrant and active media systems in the world**, playing an important role in informing people and safeguarding democracy.

B. Impact of Globalization on Media:

Introduction:

Globalization means the **free movement of ideas, culture, technology, goods, and information** across countries. After 1991, India opened its economy to the world through **Liberalization, Privatization, and Globalization (LPG)**. This had a big impact on all sectors, especially the **media industry**. Indian media became more **open, modern, competitive, and international**.

1. Increase in Foreign Media Content:

- After globalization, many **foreign TV channels, newspapers, and magazines** entered India.

- Channels like **CNN, BBC, Discovery, Star TV, MTV** became popular.
 - Indian audiences started watching **international news, entertainment, sports, and documentaries**.
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2. Growth of Private News Channels:

- Earlier, **Doordarshan** was the only TV news provider.
 - After 1991, **private companies** started their own **news and entertainment channels**.
 - Examples: *Aaj Tak, NDTV, Zee News, India Today, Times Now*.
 - This increased **competition** and gave people **many choices**.
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3. Commercialization of Media:

- Media started focusing more on **profit**.
 - News became a **product**, and **audience became customers**.
 - Media houses now focus more on **advertisements, TRP**, and **celebrity content** rather than serious issues like rural poverty or development.
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4. Technological Advancement:

- Due to globalization, India got access to **modern technology** in media.
 - Use of **satellites, internet, digital printing, mobile phones**, and **24×7 newsrooms** became common.
 - Journalists now use **live reporting, video conferencing**, and **online publishing**.
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5. Rise of Online and Digital Media:

- People now read news on **mobile apps, websites, YouTube, Instagram, Facebook**, etc.
 - Many newspapers and channels have digital versions (like *The Hindu e-paper, NDTV.com*, etc.)
 - This made news **faster, interactive**, and **available anytime, anywhere**.
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6. Impact on Culture and Values:

- Foreign content has influenced **Indian culture, lifestyle, food, fashion, and thinking**.
 - People watch Hollywood movies, international sports, and follow global trends.
 - Critics say this causes **cultural loss or Westernization**, especially among youth.
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7. Employment and Career Growth:

- Global media houses created **new job opportunities** for Indian journalists, editors, designers, and anchors.
 - International training, tools, and salaries improved the **professional quality** of Indian media.
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8. Media Conglomerates and Monopoly:

- Big companies started owning many TV channels, newspapers, and radio stations.
 - This led to **media monopoly** and **less diversity of opinion**.
 - Few powerful media houses can now influence public opinion and even politics.
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9. Threat of Fake News and Sensationalism:

- In the race to be fast and viral, many media houses spread **unverified and sensational news**.
 - The line between **news and entertainment** is becoming blurred.
 - **Clickbait headlines** and biased reporting have become common.
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Conclusion:

Globalization has changed Indian media **completely**. It brought **modern technology, international exposure, and faster communication**. But it also led to **commercialization, loss of values, and corporate control**. Indian media must balance **global quality with local responsibility**, so that it can serve the people and strengthen **democracy**.

C. Freedom of Expression, and Censorship:

Introduction:

Freedom of Expression means the right of every citizen to freely express their **opinions, thoughts, and ideas** through speech, writing, or other forms of communication. In India, this right is protected under **Article 19(1)(a)** of the Constitution. But this freedom is **not absolute**. It comes with **reasonable restrictions**, and in some cases, **censorship** is applied.

1. What is Freedom of Expression?

- It is the **right to speak, write, publish, and share** ideas freely.
- It includes freedom of the **press, media, internet**, and even **art and films**.
- Important for **democracy, public debate, education, and transparency**.
- Guaranteed by the **Indian Constitution**, but can be limited to protect **public safety, law, and order**.

2. What is Censorship?

- **Censorship** means the control or restriction of speech, writing, or images by the **government or authority**.
- It is used to **prevent content** that may be **harmful, offensive, anti-national, or socially disturbing**.
- Examples include censorship in **films, TV, books, social media, and news**.

3. Constitutional Provisions:

Article 19(1)(a):

- Gives the **right to freedom of speech and expression** to all citizens.

Article 19(2):

- Allows the government to put **reasonable restrictions** on this freedom in cases related to:
 - **Security of the state**
 - **Friendly relations with foreign countries**
 - **Public order**
 - **Decency or morality**
 - **Contempt of court**

- Defamation
 - Incitement to an offence
 - Sovereignty and integrity of India
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4. Types of Censorship in India:

a. Press Censorship:

- Happens in times of **emergency or political tension**.
- Example: During the **Emergency (1975–77)**, many newspapers were censored or shut down.

b. Film Censorship:

- Controlled by the **Central Board of Film Certification (CBFC)**.
- Films can be **banned, cut, or edited** before release.
- Example: Films like *Udta Punjab* and *Padmavat* faced censorship for political or moral reasons.

c. Internet and Social Media:

- Posts, videos, or websites can be **blocked or removed** if they promote hate, violence, fake news, or anti-national ideas.
 - Controlled by government departments under the **IT Act, 2000**.
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5. Famous Court Cases:

a. *Romesh Thappar vs. State of Madras (1950)*:

- The Supreme Court said that **freedom of press is part of freedom of speech**.

b. *Bennett Coleman vs. Union of India (1973)*:

- Court ruled that **restricting the number of newspapers** violates **freedom of the press**.

c. *S. Rangarajan vs. P. Jagjivan Ram (1989)*:

- The court said **freedom of expression cannot be suppressed** unless it causes serious public disorder.
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6. Role of Media in Defending Free Speech:

- Media plays a big role in **exposing corruption, injustice**, and giving voice to the **common people**.
 - But sometimes media can misuse this freedom by spreading **hate speech, fake news, or biased content**.
 - So, **self-regulation** and **media ethics** are also important.
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7. Debate: Freedom vs Censorship

Freedom of Expression	Censorship
Strengthens democracy	Maintains law and order
Encourages creativity and debate	Prevents hate and violence
Exposes truth and power abuse	Controls fake or harmful content
Can be misused for hate speech or obscenity	Can be misused to silence critics

Conclusion:

Freedom of expression is the **heart of democracy**. It allows people to question authority, express ideas, and participate in the nation's progress. But it must be **used responsibly**. **Censorship**, when done in a fair

and legal way, can protect society. A healthy balance between **freedom and control** is necessary for a **strong, free, and peaceful society**.

D. Contempt of Court:

Introduction:

The **judiciary (court system)** is one of the most important parts of democracy. It helps deliver justice, protect rights, and maintain law and order. But if someone **disrespects the court or its decisions**, it can affect the dignity of the court. That is why the concept of “**Contempt of Court**” exists – to **protect the respect and authority of the court**.

Meaning of Contempt of Court:

"Contempt of Court" means any action or speech that **disrespects the authority, dignity, or functioning** of a court of law. This includes **insulting judges, interfering in court proceedings, or not following court orders**.

Legal Provision:

In India, **Contempt of Courts Act, 1971** explains the meaning, types, and punishment related to contempt. Also, **Article 129 and Article 215** of the Indian Constitution give power to the **Supreme Court and High Courts** to punish for contempt.

Types of Contempt:

1. Civil Contempt

- When a person **willfully disobeys a court order** or does not follow a direction, judgment, or decree of the court.

Example: Not following a stay order given by the High Court.

2. Criminal Contempt

- When someone **says or does something** that:
 - Scandalizes (insults) the court,
 - Lowers the authority of the court,
 - Interferes with court proceedings,
 - Or tries to **influence judges unfairly**.

Example: Calling a judge corrupt without proof in public.

Why is Contempt Law Needed?

- To maintain the **authority and dignity** of courts.

- To ensure that people have **trust and faith** in the justice system.
 - To **stop people from interfering** with ongoing cases.
 - To protect **judges and judicial officers** from false and harmful allegations.
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Punishment for Contempt:

Under the **Contempt of Courts Act, 1971**, the punishment can be:

- **Simple imprisonment up to 6 months**, or
- **Fine up to ₹2,000**, or
- **Both**

However, courts often give the person a **chance to apologize**, and if the apology is genuine, the punishment may be reduced or cancelled.

Exceptions – What is NOT Contempt:

- **Fair criticism** of a judgment is allowed.
 - **Reporting of court proceedings** in a fair and accurate way is allowed.
 - If a person makes a comment with **honest intention and good faith**, it may not be contempt.
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Important Case Studies:

1. Arundhati Roy Case (2002):

- Writer Arundhati Roy was punished by the Supreme Court for contempt because she made offensive remarks against the court in a petition.

2. Prashant Bhushan Case (2020):

- Lawyer Prashant Bhushan tweeted against the Chief Justice and the judiciary. The Supreme Court found him guilty of contempt but let him go with a symbolic fine of ₹1.
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Relation with Media:

- **Media must be careful** while reporting on court cases.
 - Publishing false information or criticizing judges personally may be treated as contempt.
 - Media must wait till the **final judgment** before declaring someone guilty.
 - This is important to maintain the **dignity of the court** and the **right to fair trial**.
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Conclusion:

Contempt of court is an important law to protect the **independence, authority, and respect** of the judicial system. But at the same time, people should have the right to **question and discuss** court decisions. So, a **balance** is needed between **free speech and judicial respect**. Responsible media and citizens must understand this balance.

E. Copyright and Intellectual Property Rights:

Introduction:

In today's time, ideas and creativity are very valuable. Writers, artists, musicians, filmmakers, software developers, and others create original content. To protect their work from being copied or stolen, there are legal rights called **Intellectual Property Rights (IPR)**. One important type of IPR is **Copyright**.

What is Intellectual Property (IP)?

Intellectual Property means **any creation of the human mind** such as:

- Books, music, films, paintings
- Software and apps
- Designs and logos
- Scientific inventions

Intellectual Property Rights are the **legal rights** given to the creator or owner of that work. These rights allow them to **control how their work is used** and to **earn money** from it.

Types of Intellectual Property Rights (IPR):

1. **Copyright** – Protects books, music, films, software, photographs, etc.
 2. **Patent** – Protects inventions and new scientific ideas.
 3. **Trademark** – Protects brand names, logos, slogans.
 4. **Designs** – Protects the shape, look, or appearance of a product.
 5. **Geographical Indication (GI)** – Protects names linked with specific locations. (e.g., Darjeeling tea)
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What is Copyright?

Copyright is a type of IPR that gives the **legal right to the creator** of original work like:

- Literature (books, articles)
- Music and songs
- Films and videos
- Software programs
- Paintings and photographs

The creator has the right to:

- Publish their work
 - Sell their work
 - Make copies
 - Translate or adapt it
 - Give permission (license) to others
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Duration of Copyright:

In India, copyright usually lasts for the **lifetime of the author + 60 years** after their death.

Laws Related to Copyright in India:

- The main law is the **Copyright Act, 1957**, which has been amended several times, especially in **2012** to include digital content and internet use.

- India is also a member of the **Berne Convention** and the **WIPO (World Intellectual Property Organization)**.
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Infringement of Copyright:

When someone **copies or uses copyrighted work without permission**, it is called **copyright infringement**. This is **illegal** and can lead to:

- Fine (penalty)
 - Jail (in serious cases)
 - Compensation to the creator
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Examples of Copyright Infringement:

- Downloading movies or songs illegally
 - Using someone's photo or writing without credit
 - Copying software or apps and selling them
 - Releasing someone's film or video on YouTube without permission
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Importance of Copyright and IPR in Media:

- Protects creativity and original work
 - Helps artists, journalists, filmmakers, writers to earn a living
 - Encourages innovation and new ideas
 - Controls piracy and illegal copying
 - Protects the rights of news agencies and content creators
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Important Case Study:

Phantom Films vs. Kriti Short Film Case (2016):

Filmmaker Aneel Neupane accused the makers of the short film *Kriti* of copying his earlier film *Bob*. This raised questions about originality and copyright laws in India. The case was heavily discussed in media.

Conclusion:

Copyright and other intellectual property rights help protect the **hard work and creativity** of people. In the media industry, these rights are very important to **encourage new content** and to **protect original ideas**. Everyone – especially journalists, filmmakers, and students – should understand and respect these rights.

F. Right to Information, PIL and Official Secrets Act:

Introduction:

In a democracy like India, **transparency**, **public awareness**, and **justice** are very important. To protect these values, the Indian Constitution and legal system give people certain rights and tools. Among them are:

- **Right to Information (RTI)** – to access government information
- **Public Interest Litigation (PIL)** – to raise legal issues for public benefit

- **Official Secrets Act (OSA)** – to protect sensitive government information

These three laws deal with **citizen's rights and government secrecy**.

1. Right to Information (RTI):

Meaning:

The **Right to Information Act, 2005** gives every Indian citizen the **legal right to ask questions and get information** from the government and public authorities.

Purpose:

- To promote **transparency** and **accountability**
- To fight **corruption**
- To strengthen **democracy**

How it works:

- Any person can apply to a **Public Information Officer (PIO)** in any government department.
- The PIO must reply within **30 days**.
- If not satisfied, people can appeal to the **Information Commission**.

Examples:

- Getting copies of government contracts
- Asking about use of funds in local development
- Checking delay in ration card or pension

RTI and Media:

Journalists use RTI to:

- Investigate scams
 - Get authentic government data
 - Raise public issues in media
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2. Public Interest Litigation (PIL):

Meaning:

PIL is a legal case that can be filed by any person or group in **public interest**, even if they are not directly affected.

Introduced by:

Justice **P.N. Bhagwati** and Justice **V.R. Krishna Iyer** in the 1980s made PIL popular in India.

Purpose:

- To help poor, weak, and uneducated people get justice
- To protect public interest like environment, health, education, etc.

Who can file?

Any **citizen, NGO, lawyer, or social worker** can file a PIL in High Court or Supreme Court.

Examples:

- PIL against pollution in the Ganga river
- PIL for free mid-day meals in schools
- PIL for proper treatment during COVID-19

PIL and Media:

Media highlights important PILs and supports public movements by spreading awareness.

3. Official Secrets Act (OSA):

Meaning:

The **Official Secrets Act, 1923** is a British-era law that punishes **leaking or sharing secret government information** that can affect **national security**.

Purpose:

- To **protect confidential information** in government
- To **stop spying, leaking**, or publication of sensitive military or defence details

What is prohibited?

- Publishing or sharing any **classified** document or file
- Taking photographs of **prohibited places** (like army bases)
- Hiding or destroying official information

Punishment:

- Jail up to **14 years** and/or fine

Criticism:

- The law is **very strict** and sometimes **used against journalists or whistle-blowers**
- RTI and media freedom may **conflict** with OSA
- Demands have been made to **reform or replace** this law

Important Case Study:

Bofors Scam (1980s–90s):

Investigative journalist Chitra Subramaniam exposed the scam using leaked documents. The case raised questions about how far a journalist can go under RTI and how it conflicts with the OSA.

Conclusion:

- **RTI and PIL** are tools for **transparency, justice, and public participation**.
- **Official Secrets Act** is meant for **national security**, but it must be used **carefully** so that it doesn't harm media freedom.
- A **balance is needed** between the public's right to know and the state's duty to protect.